

26CHCV01046 26CHCV01046

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-08-10

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Case Number: 26CHCV01046 Hearing Date: August 10, 2026 Dept: F43

Dept. F43

Hearing Date: 08-10-26

Case # 26CHCV01046, Oldenburg v.

Extra Space Storage, Inc.

Trial Date: None set.

MOTION TO STRIKE

MOVING PARTY: Defendant Extra Space Storage, Inc.

RESPONDING PARTY: Plaintiff Carissa Oldenburg, in pro per

RELIEF REQUESTED

Order striking punitive damages from the
First Amended Complaint (paragraphs 62, 75, 77, 87, and Prayer for Relief Item
number 5).

RULING: Motion is granted in part with leave to amend.

SUMMARY OF ACTION

On March 13, 2026, plaintiff Carissa
Oldenburg (Plaintiff) filed this action against defendant Extra Space Storage,
Inc. (Defendant), alleging damages from Defendant's violation of California's

Self-Service Storage Facility Act.

Plaintiff filed a First Amended Complaint on May 7, 2026, asserting seven causes of action: (1) violation of the Self-Service Storage Act (Bus. & Prof. Code, §§ 21700, et seq.); (2) conversion; (3) Unfair Business Practices; (4) negligence; (5) failed accounting; (6) claim and delivery (Code Civ. Proc., § 512.010, et seq.); and (7) declaratory relief. Plaintiff is self-represented.

On June 8, 2026, Defendant filed the instant motion to strike punitive damages from the First Amended Complaint. On July 22, 2026, Plaintiff filed an opposition, and Plaintiff replied on July 30, 2026.

MEET AND CONFER

Before filing a motion to strike, the parties must meet and confer “in person, by telephone, or by video conference,” and the moving party must file a “meet and confer” declaration discussing the outcome of the meeting. (Code Civ. Proc., § 435.5, subd. (a)(3); see also Department F43 Courtroom Information, p. 2 [“meet and confer” does not mean emails and letters].)

The “meet and confer” requirement is not met because defense counsel and Plaintiff only exchanged emails instead of meeting directly. (Declaration of Dylan F. Derakhshanian ¶¶ 2-5, Exhs. A-D.) However, the court still considers the merits of the moving papers.

THE FIRST AMENDED COMPLAINT'S ALLEGATIONS

Beginning in March of 2025, Plaintiff and Defendant entered a lease agreement for a self-service storage unit at Defendant's facility at 26676 Valley Center Drive, Santa Clarita, CA 91351. (FAC ¶ 1.) Plaintiff temporarily fell delinquent on payments in May of 2025, and Defendant issued lien notices for auctions to occur in September and October of 2025. (Id. ¶ 2.) Plaintiff cured the delinquency by paying the outstanding amount in cash, and the auctions never occurred. At the time of payment,

Defendant's facility manager, Ms. Brandeis, instructed Plaintiff that all future payments must be made in person and in cash only. (Id. ¶¶ 3-4.)

At some later time, Plaintiff again became delinquent on her payments, but she never received a compliant Preliminary Notice of Lien, Notice of Lien and Foreclosure, or Declaration of Opposition to Lien Sale from Defendant. (FAC ¶

5.) On December 1, 2025, facility

manager Breanna Brandeis left a voicemail with Plaintiff, stating her unit was scheduled for an auction on December 3, 2025.

(Id. ¶ 6.) Plaintiff did

not discover the voicemail until January 8, 2026. The storage unit was sold without Plaintiff's

knowledge or statutory notice on December 3, 2025. (Id. ¶ 10.) Also on January 8, 2026, Plaintiff called the

facility and texted Ms. Brandeis asking about the proceeds of the sale. (Id. ¶¶ 7-8.) Ms. Brandeis responded that the information

could not be provided because Plaintiff no longer rented a unit at the

facility. (Id. ¶ 8.) After Plaintiff invoked her statutory rights

(citing Civ. Code, § 21707(b)), a partial receipt was emailed to

Plaintiff. (Id. ¶ 9.) However, the receipt did not provide detailed

accounting.

On January 9, 2026, Plaintiff personally

delivered a written statutory demand letter to facility manager Ms. Brandeis at

the Santa Clarita facility. (FAC ¶ 11,

Exh. A.) Ms. Brandeis stated she could

not accept the demand, and Plaintiff set the letter in front of Ms. Brandeis on

the counter and left. (Id. ¶¶

12-13.) The letter include a statutory

demand for a complete accounting and a demand for the immediate preservation of

all evidence arising from the auction and disposition of Plaintiff's stored

property. (Id. ¶ 14.) Defendant did not respond to the demand

letter.

On January 13, 2026, Plaintiff personally

served Defendant's registered agent for service of process, CT Corporation

System, with a written "preservation of evidence" notice and statutory demand

concerning Defendant's unlawful lien sale and wrongful conversion of

Plaintiff's stored property. (FAC ¶ 16,

Exh. B.) Defendant did not respond. (Id. ¶ 17.)

On January 18, 2026, Plaintiff submitted a complaint to the Better Business Bureau.

(FAC ¶ 18.) Defendant responded

but failed to provide proof that mandatory disclosure and statutory advertising requirements were satisfied. (Id.

¶¶ 19, 22, Attachment Nos. 1, 2, 3, 4.)

Instead, Defendant's response incorrectly asserted that return of personal items is "up to the discretion of the auction buyer" and improperly relied on phone calls for putting Plaintiff on notice of the lien sale. (Id. ¶¶ 20-22.)

In response to Defendant's Better Business

Bureau letter and attachments, Plaintiff sent a formal written demand to Defendant's legal department and corporate headquarters by U.S. certified mail. (FAC ¶ 48.) The demand detailed Defendant's failure to provide a compliant lien notices, lawful sale advertising, purchaser identification, surplus accounting, and return of statutorily protected personal property. (Id. ¶

50.) Despite the many written demands,

Defendant knowingly refused provide the requested information. (Id. ¶ 51.)

Defendant's statutory violations render the

lien sale void and the transfer of title to Plaintiff's property is ineffective. (FAC ¶ 56.) The fair market value of Plaintiff's wrongfully converted personal property is conservatively estimated at a minimum of \$30,000.00, and Plaintiff seeks punitive damages for Defendant's malicious conduct and ratification of the improper conduct. (Id. ¶¶ 62, 76.)

SUMMARY OF ARGUMENTS

Defendant contends Plaintiff alleges

conclusory statements without facts showing its principals or managing agents authorized or approved any fraudulent, malicious, or oppressive conduct. According to Defendant, Plaintiff alleges violations of the Storage Act which are at most show negligence. Furthermore, Defendant also contends punitive damages are disfavored and should be struck without leave to amend.

In opposition, Plaintiff contends she alleges

ultimate facts to support punitive damages.

According to Plaintiff, her allegations demonstrate Defendant's intentional sale, transfer, concealment of sale information, and refusal to return Plaintiff's personal property demonstrate Defendant's "conscious

disregard” for her statutory and property rights. The allegations concerning Defendant’s post-lien sale conduct, lack of response to Plaintiff’s demands, and inadequate response to Plaintiff’s demands, go beyond accidental paperwork error or ordinary negligence. Next, Paragraph 76 adequately alleges corporate knowledge and ratification of the wrongful conduct through service to Defendant’s registered agent for service and letters mailed to Defendant’s legal department and corporate headquarters followed by a refusal to investigate, correct, disclose, or remediate the disputed lien. Plaintiff also alleges she will be able to identify the specific corporate officers through discovery. Finally, paragraph 62, which addresses the fair market value of Plaintiff’s converted property and is relevant to Plaintiff’s tort and statutory causes of action, rather than the punitive damages claim alone.

ANALYSIS

A. Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435.) A court may, upon motion or at any time, strike from the complaint “any irrelevant, false, or improper matter” or “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., §§ 436, subds. (a)-(b), 187; *Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 830 [noting the court’s inherent power to limit the focus of the proceedings to the issues framed by the remaining viable pleadings].) An “irrelevant matter” is an allegation that “is not essential to the statement of a claim or defense,” “is neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431.10, subds. (b)-(c).) The court must read the factual allegations in the complaint as a whole and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Defendant moves to strike punitive damages from the First Amended Complaint:

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Paragraphs 62, 75, 77, and 87; and

Prayer for Relief, Page 29, item number 5.

1. Punitive Damages

A motion to strike punitive damages may lie where the alleged facts do not rise to the level of “malice, fraud, or oppression” required to support punitive damages. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.)

Although Plaintiff adequately alleges ratification by Defendant’s corporate officers (refusing to investigate, correct, disclose, account, or remediate the supposed sale) (FAC ¶ 76), the court finds Plaintiff’s allegations concerning Ms. Breanna Brandeis and the defective notices do not demonstrate malicious or oppressive conduct to support punitive damages.

To state a prima facie claim for punitive damages, a complaint must set forth specific facts demonstrating the elements stated in Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721; see also Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.)

Malice is “conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id. at p. 725; Civ. Code, § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).)

Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).) “Malice and oppression may be inferred from the circumstances of a defendant’s conduct.” (J. R. Norton Co. v. General Teamsters, Warehousemen & Helpers Union, Local 890 (1989) 208 Cal.App.3d 430, 444.)

Conclusory statements characterizing a defendant's conduct as intentional, willful, and fraudulent are insufficient to plead fraud or malice. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) The complaint must state "specific facts showing that defendant's conduct was oppressive, fraudulent or malicious (e.g., that defendant acted with the intent to inflict great bodily harm on plaintiff or to destroy plaintiff's property or reputation)." (*Croskey, et al.*, Cal. Prac. Guide: Insurance Litigation Ch. 13-C (Thomson Reuters, 2016) ¶ 13:197.2; see *Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643 [allegations that defendant's conduct was "intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff's rights" did not satisfy specific pleading requirements].) A complaint must plead ultimate facts to support punitive damages. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Antelope Valley Groundwater Cases* (2020) 59 Cal.App.5th 241, 265 ["[T]he term 'ultimate fact' generally refers to a core fact, such as an essential element of a claim."].)

Plaintiff seeks punitive damages based on her "conversion" cause of action. The elements of conversion are that (1) plaintiff owns or has a right to possession of personal property at the time of conversion, (2) defendant unlawfully exercised dominion over the property, and (3) plaintiff suffered financial harm or loss due to defendant's actions. (*Regent Alliance Ltd. v. Rabizadeh* (2014) 231 Cal.App.4th 1177, 1181.) Because conversion is a strict liability tort, "the tort consists in the breach of an absolute duty," rather than the defendant's good faith, lack of knowledge, and motive. (*Ibid.*) However, Plaintiff must still allege ultimate facts that demonstrate fraud, malice, or oppression to support punitive damages.

Plaintiff alleges Defendant intentionally and substantially interfered with her ownership, possession, and right to possession of the storage unit by preventing her from using the unit, conducting and causing a lien sale without strict compliance with California's Self-Storage Facility Act, transferring and disposing of Plaintiff's property, refusing to disclose the identity of the purchaser, refusing to provide sale records and a complete accounting, and refusing to return protected personal property after Plaintiff demanded its return.

(FAC ¶ 82.) According to Plaintiff, because Defendant did not strictly comply with statutory requirements governing non-judicial self-storage lien sales, Defendant lacked lawful authority to sell, transfer, or dispose of Plaintiff's property, making the sale void and ineffective. (Id. ¶ 85.)

California's Self-Storage Facility Act grants a self-storage facility owner a lien on all personal property stored at the facility for unpaid rent, late fees, and other charges incurred under the rental agreement. (Bus. & Prof. Code, § 21702.)

Based on the exhibits attached to the First Amended Complaint and the attachments within the complaint itself, Defendant did not have a right to exercise dominion over Plaintiff's property and unit because the required lien notices did not comply with Business and Professions Code sections 21703 and 21705.

Plaintiff made her last rent payment on August 26, 2025, but failed to make the next payment on September 25, 2025. (FAC, Exh. C at p. 6.) Plaintiff does not oppose this information.

The preliminary lien notice was defective.

Section 21703 governs the preliminary lien notice. When the renter or occupant's charges remain unpaid for 14 consecutive days, the owner may terminate the occupant's right to use the storage space by sending a notice that includes (1) an itemized statement of amounts owed, (2) a statement that the occupant's right to use the storage space will terminate on a specified date (not less than 14 days after mailing the notice) unless all sums due are paid before a specified date, (3) a notice that the occupant may be denied access to the storage space after the termination date if sums are not paid and that an owner's lien may be imposed thereafter, and (4) the name, street address, and telephone number of the owner or their designated agent whom the occupant may contact to respond to the notice. (Bus. & Prof. Code, § 21703, subds. (a)-(d).)

On October 10, 2025, Defendant mailed Plaintiff a "Preliminary Lien Notice" informing her that (1) she was 14 days late on rent

and other charges listed, (2) providing the name of the owner (Defendant's name) and Defendant's contact information for Plaintiff's questions about her account, (3) stating if not paid within 14 days, her right to use the storage space would be terminated, she would be denied access to the storage unit, and an owner's lien would be imposed on her storage property. (FAC, Attachment No. 1.) The notice also stated that if Plaintiff did not pay the current amount due by her "monthly anniversary date," she would owe an additional month's rent, late fees, and tax and insurance. Defendant listed a total due of \$76.20: \$55 unpaid rent, \$10 unpaid fees, and \$11.20 in unpaid insurance. However, the notice did not specify the payment due date or the date on which Plaintiff's right to use would terminate. Section 21703 expressly and unambiguously requires the facility owner to state these dates. Because the preliminary lien notice did not strictly comply with Section 21703(b)-(c), the Preliminary Lien Notice is deficient in violation of the Self-Storage Act.

The notice of lien was defective.

Section 21705 provides that if the preliminary lien notice has been sent and the total sum due has not been paid by the termination date specified in the preliminary lien notice, the lien attaches and the owner may deny access to the space, enter it, and remove property to safekeeping. (Bus. & Prof. Code, § 21705, subd. (a).) Upon the taking of such actions, the facility owner must mail to the occupant's last known address a notice of lien sale which states: (A) the occupant's right to use the storage space has terminated and that the occupant no longer has access to the stored property; (B) the stored property is subject to a lien, the current amount of the lien, and that the lien will continue to increase if rent is not paid; (C) the property will be sold to satisfy the lien after a specified date that is not less than 14 days from the date of mailing the notice, unless the occupant executes and returns by certified mail a declaration in opposition to lien sale; (D) the occupant may regain full use of the space by paying the full lien amount before the date specified in subparagraph C; and (E) "any excess proceeds of the sale over the lien amount and costs of sale will be retained by the owner and may be reclaimed by the occupant or claimed by another person at any time for a period of one year from the sale and that thereafter the proceeds will escheat to the county in which the sale is to take place." (Bus. & Prof. Code, § 21705, subd. (b)(1).) The owner must also mail the occupant a "blank declaration in opposition to lien

sale” that complies with the statutory code.
(Bus. & Prof. Code, § 21705, subd. (b)(2).)

On November 3, 2025, Defendant mailed a “Notice of Lien and Foreclosure” along with a blank “Declaration in Opposition to Lien Sale.” (FAC, Attachment No. 2.) However, the notice is dated November 1,

2025. The notice stated Plaintiff’s

right to use her unit was terminated and access to the unit and her stored property would continue to be denied; the stored property was subject to a \$240

lien that would continue to increase if rent was not paid; Plaintiff’s property

would be sold at an auction on December 3, 2025, to satisfy the lien if the

lien amount was not paid within 15 days of the due date November 1, 2025 unless

Plaintiff executed and returned the declaration of opposition; and includes the

statements required by sub-subdivisions (D) and (E). However, the notice is defective because the specified

due date and the notice date itself are two days before Defendant mailed the

notice. Fifteen days from November 1,

2025 is November 16, 2025, but fifteen days from November 3, 2025 is November

18. Either way, the notice is ambiguous

as to when Plaintiff must pay the lien or return the declaration to stop the auction.

The based on the attachments in the First Amended Complaint, the lien sale advertisements complied with Section 21707(a)(3).

After expiration of the time given to in the notice of

lien sale, the owner must publish an advertisement of the sale “[o]nce in a

newspaper of general circulation published in the public notice district where

the sale is to be held or in the county where the self-service storage facility

is located and once on any publicly accessible internet website that

customarily conducts or advertises online auctions or sales. The online advertisement shall remain online for seven days before the sale.” (Bus.

& Prof. Code, § 21707, subd. (a)(1)(B).) “The advertisement shall include the name of

the person on whose account the goods are being stored and the name and

location of the storage facility.” (Bus.

& Prof. Code, § 21707, subd. (a)(3).)

Here, a screenshot taken on November 25, 2025, of the website Auctions-Storage.com, lists Defendant’s name, facility address, the date of the auction, the time of the auction, the method of payment (cash at

the time of sale), the unit number, Plaintiff's name, a general description of Plaintiff's property (Home items garage items), and the website where bidding occurs, "www.storagetreasures.com." (FAC, Attachment No. 3.) The newspaper advertisement was published once on November 21, 2025, in the Daily Journal but failed to describe the property to be sold. However, the advertisement did include the location of the property, the name of the property owners, the website for bidding, and the type of payment allowed.

Based on the Plaintiff's allegations and the images included in the First Amended Complaint, the preliminary lien and lien notices were noncompliant. As a result, Plaintiff had insufficient notice concerning the specific dates by when she was cure the delinquency and payoff the lien. Nor is it clear when and whether the notices were mailed to Plaintiff according to the statute. Thus, Defendant lacked authority to exercise dominion over Plaintiff's personal property and to dispossess Plaintiff of her personal property by lien sale.

Although this establishes conversion and violations of the Self-Storage Act, the defective notices and Ms. Brandeis waiting until after Plaintiff invoked her rights to send the receipt, do not rise to level of intentional or reckless conduct done with a disregard for Plaintiff's rights. As alleged, Defendant's pre-sale conduct amounts to nothing more than negligent conduct because Plaintiff did not raise objections to the sale until over a month after it occurred. (Krusi v. Bear, Stearns & Co. (1983) 144 Cal.App.3d 664, 679 [negligence, gross negligence, and reckless are insufficient to support punitive damages].)

Plaintiff alleges no intentional or reckless pre-sale conduct by Defendant which demonstrates Defendant or Ms. Brandeis intentionally or consciously acted with disregard to Plaintiff's rights to her property. Defendant's responses to Plaintiff's complaint to the Better Business Bureau (FAC, Exh. C.), demonstrates that Defendant believed it had complied with the Self-Storage Act, even providing copies of the defective notices to prove its compliance. Furthermore, Plaintiff cites no case law or statutory authority which requires Defendant to provide her with a full accounting of the auction or sale. Even still, after Plaintiff invoked her statutory rights, Defendant, through Ms. Brandeis provided Plaintiff with a receipt from the sale.

Finally, the court finds that Plaintiff adequately alleges ratification. Under a

ratification theory, the complaint must allege facts showing that after the alleged incident, the employer's officer, director, or managing agent became aware of the wrongful conduct and approved, adopted, or failed to investigate and discipline the employee under circumstances showing a conscious disregard. "[R]atification may be inferred from the fact that the employer, after being informed of the employee's actions, does not fully investigate and fails to repudiate the employee's conduct by redressing the harm done and punishing or discharging the employee." (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 621, citation omitted.)

The complaint must allege that a corporate officer or managing agent ratified the wrongful conduct and allege the specific conduct beyond merely failing to terminate the employee. (Delfino v. Agilent Technologies, Inc. (2006) 145 Cal.App.4th 790, 811-812.)

Here, Plaintiff alleges she personally served Defendant with demand letters on January 9, 13 and February 26, 2026, and filed a BBB complaint on January 18, 2026, along with several responses. (FAC ¶¶ 11, 16, 18, 48, Exhs. A, B, C.) Although Defendant responded to the complaint with documentation and claiming it complied with its statutory duties, Plaintiff alleges that after Defendant had actual notice of the defective notices, its corporate officers ratified the notices and wrongful conversion of her property by failing and refusing to investigate, correct, disclose, account, preserve, or remediate the sale. (Id. ¶¶ 76-77, Exh. C.) Defendant's failure to act after receiving Plaintiff's demand letters and complaint shows a conscious disregard for Plaintiff's right to possession of her property despite having notice that its notices were defective. However, because the underlying conduct (the defective pre-sale notices) is negligent as alleged, Plaintiff fails to establish a valid basis for punitive damages.

Therefore, the court grants in part Defendant's motion to strike punitive damages from the First Amended Complaint with leave to amend. The court strikes the following from the First Amended Complaint: Paragraphs 75, 77, and 87, and Prayer for Relief item number 5. The court does not strike paragraph 62 in full but does strike Page 20, line 8 "punitive damages,".

The court notes Plaintiff's opposition lacks sufficient legal authority to support her arguments. Absent a good faith basis for modifying or extending an existing law,

litigants are generally prohibited from asserting a position in litigation without authority. (See, e.g., *In re Estate of Randall* (1924) 194 Cal. 725, 728-729 [“Contentions supported neither by argument nor by citation of authority are deemed to be without foundation, and to have been abandoned.”]; see also *Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 [“When a point is asserted without argument and authority for the proposition, ‘it is deemed to be without foundation and requires no discussion by the reviewing court.’”]; *Atchley v. City of Fresno* (1984) 151 Cal. App. 3d 635, 647 [“Where a point is merely asserted by appellant’s counsel without any argument of or authority for the proposition, it is deemed to be without foundation and requires no discussion by the reviewing court.”].)

Although Plaintiff is self-represented, Plaintiff must properly support her contentions to the same standard as an attorney. (*Nuño v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811, citation omitted [“[A] self-represented litigant who is not indigent ‘must expect and receive the same treatment as if represented by an attorney—no different, no better, no worse.’”].)

CONCLUSION and ORDER

Motion to strike is granted in part with leave to amend.

The court strikes the following from the First Amended Complaint:

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Paragraphs 75, 77, and 87;

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Page 20, line 8: “punitive damages”; and

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Prayer for Relief item number 5: “For punitive and exemplary damages pursuant to Civil Code section 3294, according to proof, based on DEFENDANT’S’ malicious and oppressive conduct, including DEFENDANT’S’ intentional sale, transfer, detention, concealment of sale

information, refusal to return protected property, and conscious disregard of PLAINTIFF's statutory and property rights;"

Plaintiff may file an amended complaint within 20 days of the issuing of this order.

Defendant to give notice.